

Where my charges stand

Charge 2 discontinued. Charges 1 and 3 continuing. My answer to each reason they gave.

Cory Lea Shepherd · CO-25-2722 — Southport Magistrates Court — 13 August 2026

Where things stand today

I was charged with three things. The prosecution has now answered my submissions on all three.

Charge 2 — unlawful stalking, intimidation, harassment or abuse — has been accepted and is being discontinued. That charge was on me for about eighteen months.

Charge 1 — entering premises and committing an indictable offence — and Charge 3 — contravening a domestic violence order — are continuing. They gave three reasons for Charge 1. They gave no reasons at all for Charge 3.

What follows is my answer to each of those reasons, and what I say the police did that they had no power to do.

Charge	What it is	Where it stands
1	Entering premises and committing an indictable offence — s 421(2)	Continuing
2	Unlawful stalking, intimidation, harassment or abuse — s 359E(1)	Discontinued
3	Contravention of a domestic violence order — s 177(2)(b)	Continuing

Charge 2 is gone, and it should never have been there

The stalking charge is being discontinued. I want to be clear about what that means, because it is not a small thing.

On 24 February 2025 — the second day — Constable Davies described that same charge on his own body-worn camera, standing in my mother's house. He said it was a blanket charge, and that the substance of it was emails I had sent to Alexia and to her family.

So the officer who charged me knew on day two what that charge actually was. It stayed on me for eighteen months anyway. Now the prosecution has accepted it cannot stand.

The whole 'stalking' idea came from Laura Phillips emailing police to say we were stalking her. I had never met her before that night. I said so to the first officer who spoke to me: 'we've never even seen her in her life.'

“it's a blanket charge i believe it's stalk harass intimidate that they all fall under the one umbrella right and so the harassment side of that are some emails that he sent to alexia but also her family”

What Charge 1 actually requires them to prove

Charge 1 is section 421(2) — entering premises AND committing an indictable offence inside them. It has two parts. They have to prove both.

They have not said in their letter what the second part is. It can only be stealing the dog, because their third reason is that the dog belonged to Alexia. There is no separate stealing charge on the indictment. Stealing is being run inside Charge 1.

Charge 3 cannot be about me entering, because the order had no condition keeping me away from the unit. The only conditions were be of good behaviour and do not commit domestic violence. So Charge 3 must also be about the dog.

That means both charges that are left come down to the same question: was taking Romeo a criminal act. Everything now sits on that one point.

The version of the charge they picked tells you something

Section 421 has two limbs. The first is entering with the intention of committing an offence. The second is entering and then committing one — no intention needed at the door.

They charged the second limb. They did not charge the first, and they did not charge burglary.

That is because their own investigating officer said on his own camera that I did not go there intending to take the dog. They have built the charge around what their officer already admitted.

“but he's collected the dog which doesn't sound like he had the intent of taking the dog but he's taken it anyway”

Their first reason — the Form 13

They say the leasing manager has given a statement that I sent a Form 13 notice of intent to leave, that it was accepted, and that I was removed.

The same leasing manager told the police the exact opposite, on their own cameras, on the night.

He told Constable Davies the lease-off was not accepted, because Alexia could not hold the apartment with only her name on it.

He told Constable Easthope that he was not aware of me signing any notice of intent to leave, that both of us would have to sign it, and that the process had not even started.

He told Constable Easthope that we were both allowed to be there, and that it was the third party — Laura Phillips — whose position was the questionable one.

And at 1:54 in the morning, in the middle of the lockout, he telephoned Constables Bickery and Harmer and told them straight out that a Form 13 does not terminate the lease.

So there are now two completely different accounts from the same witness. The one they are relying on came later. The one on the police cameras was on the night, and he swore the same thing in his statutory declaration.

“Both parties must sign that form, Corey and Alexia. And then there's another form to fill out for the bond... No, it hasn't even started and we're not aware of it.”

The new lease — this is my strongest point

Alexia herself put material before the court showing that a new lease started months later.

You do not need a new lease if the old one had already ended. If my tenancy had genuinely finished in December or February, and she had simply carried on living there, there would be nothing to replace. A brand new agreement starting months afterwards means the old agreement — the one with my name on it — was still the live one until it was replaced.

It also matches what the leasing manager told the police that night. He said she could not have the apartment with her name only on it. That is exactly why a new lease had to be made later.

This is not my word against anybody's. It is a dated document that she filed in court herself.

The bond was never dealt with

Alexia told me that a Form 20 is the only thing that actually ends a lease. That form was only ever sent and accepted by her. I never signed it.

The leasing manager said the same thing to Constable Easthope on camera. After saying both of us would have to sign the notice, he said there was another form to fill out for the bond — and that none of it had started.

I told the police the same thing myself within hours of being arrested: my bond is still there, everything is still there, my name is still on the lease.

The bond is not held by the agent and it is not held by either of us. It is held by the Residential Tenancies Authority. Their record will show who the contributors were, whether that was ever changed, whether it was ever refunded and to whom, and whether a new bond was lodged for a new tenancy and when.

That record does not care who is asking. It either backs what I have said or it does not, and I have been saying the same thing since the night it happened.

Their second reason — that I checked and was told I was not on the lease

They say that before any of this I clarified whether I was on the lease, that I was not, and that there was therefore clearly no mistake of fact.

I did check. I took a whole week to check. I confirmed it with the Residential Tenancies Authority, I printed out the documents, and I confirmed it with building management, because my bond was still there and my name was still on the lease. I said all of that to the first officer who spoke to me, on his camera, within hours.

Whatever answer anyone says I was given, a man who spends a week checking with the tenancy authority and the building manager before he goes anywhere is not a man being reckless. Checking is the opposite of not caring.

And Constable Davies said on his own camera that I had been informed I could go to that unit, that my name was still on the lease, and that I had been tricked.

“he was told he was informed that he could go to that unit his name's still on the lease... so that's really tricked him”

Their third reason — that the dog belonged to her

I bought Romeo. My mother and I drove from the Gold Coast to Sydney on 25 October 2024 and picked him up from the breeder ourselves. I have the receipt.

I registered him in my own name in Queensland with the Gold Coast City Council. That registration is older than the New South Wales transfer they are relying on.

The New South Wales Pet Registry wrote to me themselves on 15 May 2025 and said that once the animal moved interstate they have no authority over him.

But the more important point is that ownership is not actually the test. For a stealing allegation, what matters is whether I acted in the honest belief that I had a right to. It does not matter whether I turn out to be right. It matters whether I honestly believed it.

I said 'it's my dog' at the time. I said it three times in a row at the seizure a month later, with the receipt and the registration in the car with me. I have said the same thing to every officer who has asked me since.

And Alexia's own messages say: I won't restrict you from the animals. All in your name now. He's always happy to see you. You can trust me too.

Laura Phillips even told the police that I had said I had a text from Alexia giving me permission to walk him.

The state I was in when I signed things

I was diagnosed with major depressive disorder. That is in my medical records, along with PTSD and anxiety, and I was on prescribed medication for it.

Alexia knew that. She had been my partner for five years, and she told the police about my diagnosis herself.

The dog transfer she relies on was signed on 17 December 2024 — weeks after she left with her friends and took him, while I was diagnosed, medicated, and trying to hold the relationship together. The Form 13 came out of the same period.

And then the protection notice itself says that I have a mental illness, that I do not take my medication, and that this makes me act crazy and fly into rages. I was taking my medication. I was working and studying. The building manager described me as consistently helpful and devoted.

So the same condition was used to get the signatures out of me, and then used to tell the police I was dangerous. That is one pattern, not three coincidences.

Charge 3 — the order had no condition I could have breached

The order had two conditions. Be of good behaviour towards the aggrieved. Do not commit domestic violence against the aggrieved. That is all it said.

There was no no-contact condition. There was no order excluding me from the unit. There was no ouster.

Alexia's own sworn statement repeats those same two conditions and nothing else.

Constable Easthope said on his own camera at the scene that she had told me the wrong conditions, because technically I was allowed to be there.

And she was in Perth. Three and a half thousand kilometres away, on a plane. She never made a report to Western Australian police at any point, in the state where she actually was. Four days earlier she had put it in writing that this was a legal civil case that I needed a lawyer for.

“she's told him the wrong conditions because technically he's allowed to be here”

What the police did that they had no power to do

They seized Romeo and gave him to Alexia before there was any court order. They admitted that in court in August 2025. There is no power to do that.

It matters even more now. Whose dog Romeo is has become the whole case. He is the central exhibit in a live criminal proceeding, and the police handed him to the complainant. Nobody can now scan a microchip, or check an independent vet record, or trace where he went. They are asserting a fact about the dog that their own conduct made impossible to test.

They took my phone and did not put it on the property receipt. Receipt 137237 lists one dog and nothing else. I told them on tape there was a message on that phone from Alexia saying I could walk him. The officer said they would not delete it and that they wanted to see what was on the phone. Fourteen months later it has never been examined and that message has never been produced.

Constable Davies told the property manager to reinstate the fobs immediately because I was not the leaseholder, told him I would not be going back for the foreseeable future, and told him his conduct had obstructed police. The property manager corrected him on the lease on the same recording.

Constable Bickery was handed a printed folder of my evidence at the scene by Tom Balsey — the lease, the emails, Alexia's messages inviting me to stay two to three weeks. He did not log it. He left it in the apartment with Laura Phillips.

And they used domestic violence emergency powers when the person they were protecting was on a plane on the other side of the country, and had told them in writing four days before that this was a civil matter.

Before I was even charged, an officer said on the recording in the van that they were going to put me on bail conditions not to go back there. The exclusion was the plan. The charge was how they got there.

“regardless of what paperwork he has, we've got to seize the dog and then he's got to go through the courts to get the dog back”

The documents behind it

A The new lease filed by Alexia

The tenancy agreement she put before the court, showing a commencement date months after February 2025.

- A new lease is only necessary if the old one was still running.
- It matches what the leasing manager told police — that she could not hold the apartment with her name only on it.
- It is dated, documentary, and she filed it herself.

B The RTA bond record

The bond history for Unit 104, held by the Residential Tenancies Authority.

- Who the bond contributors were, and when it was lodged.
- Whether any change of contributors was ever processed.
- Whether it was ever refunded, when, and to whom.
- Whether a new bond was lodged for a new tenancy, and on what date.
- Independent of both of us and of the agent.

C The leasing manager on the police body-worn cameras

Denis Constable speaking to Constable Davies and to Constable Easthope on the night of 23–24 February 2025.

- To Davies: the lease-off was not accepted, because she could not have the apartment with her name only on it.
- To Easthope: he was not aware of me signing a notice of intent to leave; both parties would have to sign; there was another form needed for the bond; none of it had started.
- To Easthope: we were both allowed to be there — the third party was the questionable one.
- At 1:54 a.m., by telephone to Bickery and Harmer: a Form 13 does not terminate the lease.
“Form 13 does NOT terminate the lease.”

D The leasing manager's later statement

The statement the prosecution is now relying on. Not yet disclosed to me.

- It says the Form 13 was accepted and that I was removed.
- That is the opposite of what the same man told two police officers on camera on the night.
- The inconsistency needs to go on the record.

E Constable Easthope's arrival briefing — 2:00 a.m.

The first thing recorded when police arrived, before any decision was made.

- 'he's got the key and he's got a lease... it's his lease, his bottom and it's his key, so he's entering the property to get stuff out.'
- Later on the same recording: 'so technically you can be here', 'she's told him the wrong conditions', 'we don't know who owns the place'.
- Laura Phillips on the same recording: 'I don't have any forms that show that I'm on the lease here.'
“he's got the key and he's got a lease... it's his lease, his bottom and it's his key”

F Constable Davies at my mother's house — 24 February 2025

The recording that was left out of the original brief of evidence. Marked 'Not contained with original FBOE — Not relevant to offence'.

- 'we have to defer to the judgment of our other police... and we don't reinvestigate that... That's not how it works.'
- 'alexia was 2 000 kilometres away... because he was told that he could enter that place. His name's still in the lease. His belongings are still there.'
- 'doesn't sound like he had the intent of taking the dog.'
- 'the harassment side of that are some emails that he sent to alexia but also her family.'
- 'that's really tricked him because she said... two to three weeks can cory come and stay here.'
- The keys taken off me were 'a master key for that Scion unit... it gets into everywhere in that building.'
- All of it said the night before the Magistrate struck the order out.

G Romeo's purchase and Queensland registration

How I came to have him, and in whose name he was registered.

- Bought from a Sydney breeder on 25 October 2024. My mother and I drove down and collected him ourselves.
- Registered in my name with the Gold Coast City Council — before the 17 December 2024 New South Wales transfer.
- WhatsApp, 25 October 2024, 6:34 a.m.: 'I got Romeo babe'.
- NSW Pet Registry, 15 May 2025: 'As you have moved the pet interstate NSW doesn't have any authority on the pet now'.

H Alexia's own messages about the animals

What she put in writing to me.

- 'I won't restrict you from the animals'
- 'All in your name now'
- 'He's always happy to see you'
- 'You can trust me too'
- 'I will never give away my animals'

I My medical records

The diagnoses and prescriptions on foot at the time the documents were signed.

- Major depressive disorder, PTSD, anxiety.
- Prescribed Lisdexamfetamine, Fluoxetine and Quetiapine.
- The protection notice says I do not take my medication and that this makes me act crazy. I was taking it.

J Field Property Receipt 137237

What the police wrote down that they took from me.

- It lists '1 x dog'. That is the whole list.
- It does not list my phone. They took my phone.
- It does not list the folder of evidence Tom Balsey handed to Constable Bickery at the scene.

K Senior Constable Yaun's email — 21 August 2025

From the officer who issued the original notice.

- 'My original application for a DVO was struck out of Court several months ago upon my submission of no evidence from the aggrieved.'
- 'I believe another application may have been made by another officer from Southport who incorrectly used my original Police occurrence.'
- 'I have had no further involvement in your matters.'

“struck out of Court several months ago upon my submission of no evidence from the aggrieved”

What I want done now

- Get the new lease Alexia filed, and the date it starts. That date answers their first reason on its own.
- Get the full bond history from the Residential Tenancies Authority — contributors, any change, any refund, and whether a new bond was lodged and when.

- Get the leasing manager's statement that they are relying on, with the date it was taken and who took it, and put it alongside what he told the two officers on camera and what he swore in his statutory declaration.
- Make them say, in writing, what the indictable offence inside Charge 1 is meant to be.
- Make them identify which order Charge 3 is brought on, produce a certified copy with its conditions, and produce the service record — and answer Senior Constable Yaun's email.
- Put honest claim of right on notice, with the breeder receipt, the Gold Coast Council registration, Alexia's own messages, and the NSW Pet Registry's letter.
- Produce the body-worn camera serials X60508355, X60507687 and X60500949, agreed for release through the external review and never handed over, and Constable Davies's five-page statement listed in the index as 'to be provided'.
- Examine my phone or give it back, and produce the message from Alexia saying I could walk the dog.
- Formal notice about the dog being given away before any court order, and the fact that nobody can now test the very thing they are asserting against me.
- Review my bail conditions now that Charge 2 has gone.